

BH NEXUS, LLC

MASTER SERVICES AGREEMENT

OWNER'S ADVISOR ENGAGEMENT AGREEMENT with Good Samaritan Hospitals

This Master Services Agreement ("Agreement") is made and entered into as of July 1, 2025 by and between BH NEXUS, LLC, a California limited liability company, with offices at 302 Washington Street, Suite #211, San Diego, CA 92103 ("Consultant" and "Owner's Advisor"), and **Good Samaritan Hospitals** ("Client"), a California nonprofit behavioral health hospital entity.

1. PURPOSE OF AGREEMENT

This Agreement sets forth the terms and conditions under which Consultant (BH NEXUS) shall provide Owner's Advisory Real Estate Development consulting services to Client in support of rapid delivery of behavioral health development projects, including strategic planning, permitting, and compliance oversight. Specific scopes, deliverables, fees, and timelines for each project and each future application and new projects shall be set forth in individually executed Project Addenda.

BH NEXUS, LLC was founded to address the critical need for rapid delivery of behavioral health care infrastructure. Our consulting firm uniquely combines subject matter expertise in California's real estate development best practices, with deep behavioral health insights, specializing in the integration of behavioral health design, research, strategy, development and execution principles and leadership. Our mission is to revolutionize behavioral health care through thoughtfully designed environments that facilitate healing, promote recovery, enhance well-being, and foster community resilience. BH NEXUS' subject matter expertise (SME) focuses on best practices and decision outcomes for feasibility studies, financial modeling, program requirements, award process, award-winning application development, contracting and post-award compliance, planning, permitting, and construction of behavioral health facilities. We ensure projects effectively manage significant savings of time and money while mitigating substantial and technical risks associated with local, city, county, and state real estate regulations, requirements, and funding guidelines, from site selection through contracting and permitting to completion, securing resources to maximize impact and long-term business sustainability. At BH NEXUS, LLC, our work is not just about developing new facilities; it is about shaping the future of behavioral health care through real estate excellence and informed project development.

2. SCOPE OF SERVICES

Consultant shall provide Real Estate Development Owner's Advisory services to Client, including:

- Strategic Leadership and Best Practices for Performance in Real Estate Development
- Ongoing Ownership & Leadership Meetings, as needed, upon availability
- Daily strategic vision, mission, accuracy, alignment, and risk containment
- Ongoing Real Estate Development tactics and best practices for performance and compliance
- Strategic Business Planning, Business Pursuits, Grant Applications, Partnerships
- Subject Matter Expertise for Real Estate Development Best Practices
- Cost Containment, Risk Reduction, Contract Best Practices
- Contracting Risk Mitigation, Negotiations, Maximize Good Samaritan's Opportunities
- Best Practices for coordination planning/permitting/construction
- Budget and funding advisory insights and best practices

- Stakeholder and Development Team coordination
- Oversight of planning, permitting, and construction documentation phases
- Best Practices for Ownership Operations and Investment Committee guidance

Authorization as Owner's BHCIP Advisor

Client hereby authorizes BH NEXUS to operate as the Owner's Advisor for all matters related to BHCIP and Real Estate Development Best Practices. BH NEXUS and its CEO Brian Jones shall have the authority to represent the Client's interests in discussions and negotiations pertaining to the BHCIP projects and shall act in the best interests of the Client throughout the duration of this Agreement. BH NEXUS is not a fiduciary and has no financial authority beyond consulting.

Consultant's advisory services during construction are limited to strategic remote oversight and do not include direct contractor supervision, site inspections, or day-to-day management responsibilities of accounting, reporting, or supervising.

3. TERM AND TERMINATION

This Agreement shall be effective as of the Effective Date and continue for an initial term of twelve (12) months. Thereafter, it shall automatically renew for successive twelve (12) month terms, up to a maximum total duration of sixty (60) months, unless terminated earlier.

Either party may terminate this Agreement or any active Project Addendum with thirty (30) days' written notice. Upon termination, all earned fees and outstanding invoices shall be paid within thirty (30) days.

4. COMPENSATION

4.1 Base Compensation. Consultant, BH NEXUS, LLC while serving as Owner's BHCIP Advisor, shall be compensated as set forth in EXHIBIT A. Base Rate Fee of \$6,500 Tier 1 monthly fee shall be billed monthly in advance on or about the first calendar day of each month, with any approved supplemental fees for additional hours, services, expenses included in the following month's invoice.

4.2 Adjustments for Scope Changes. Fee rates are based on the initial assumptions outlined in Exhibit A. If the workload, schedule, or responsibilities materially change, the Consultant's fee may be adjusted by mutual written agreement or documented confirmation via email.

4.3 Travel and Per Diem. Consultant shall be reimbursed for all reasonable and necessary travel and lodging expenses incurred in connection with Client-facing services. Travel shall be booked at standard business rates with a maximum lodging fee of \$250 per night, reimbursable thru invoices. Plus a per diem of \$500 per day shall apply for any full or partial days involving Client-facing work that requires travel, as needed and approved by client.

4.4 Supplemental Work and Compensation. Upon Client's informed written consent, additional compensation may be required for supplemental services and hours, in excess of Tier 3 Fee Schedule, as set forth in Exhibit A, for additional work needed or out-of-scope services. These may include, but are not limited to such examples as:

- Issuing or managing Requests for Proposals (RFPs)
- Stakeholder meeting preparation and facilitation
- Forensic research or records review
- Grant Applications and Performance Fees

Such services, beyond Tier 3 Fee Schedule shall be billed at the agreed-upon \$250 hourly rate or according to a separate written fee schedule mutually approved in advance by the Client.

5. CLIENT RESPONSIBILITIES

Client agrees to provide timely access to key personnel, project documentation, external consultants, and decisions required for Consultant to perform its scope effectively. Client authorizes Consultant to act on its behalf as Owner Advisor, without fiduciary authority. Client assumes and retains all fiduciary responsibilities and ownership authority.

6. CONFIDENTIALITY

Both parties agree to maintain confidentiality of proprietary or sensitive information shared during the course of this engagement. This clause survives termination.

7. INDEPENDENT CONTRACTOR

Consultant is an independent contractor. Nothing herein creates a partnership, joint venture, or employment relationship.

8. INDEMNIFICATION AND LIMITATION OF LIABILITY

Client agrees to indemnify Consultant against claims arising from Client-provided materials, third-party actions, or misuse of deliverables. Consultant's liability shall not exceed 1/3 the total fees paid under this Agreement. Client agrees to indemnify, defend, and hold harmless Consultant, its officers, directors, employees, and agents from and against any and all claims, damages, losses, liabilities, costs, and expenses (including reasonable attorneys' fees) arising out of or related to: (i) Client's breach of this Agreement; (ii) acts or omissions of Client or its representatives; or (iii) any third-party claims related to Client's use of Consultant's services or deliverables, except to the extent arising from Consultant's gross negligence or willful misconduct.

9. INTELLECTUAL PROPERTY

All deliverables remain property of Consultant until fully paid. Upon payment, Client receives a limited-use license for internal project purposes.

10. DISPUTE RESOLUTION

Disputes will be resolved through good-faith mediation before pursuing arbitration or litigation. Venue shall be San Diego County, California.

11. GENERAL PROVISIONS

11.1 Amendments: All modifications must be in writing and signed by both parties.

11.2 Assignment: Neither party may assign this Agreement without written consent.

11.3 Entire Agreement: This Agreement and its Addenda constitute the full understanding between the parties BH NEXUS and GOOD SAMARITAN HOSPITALS.

11.4 Notices: All notices must be sent to the addresses specified in the signature block or as updated in writing.

SIGNATURES

IN WITNESS WHEREOF, the parties have executed this Master Services Agreement as of the date written below.

For BH NEXUS, LLC:

Name: Brian Jones

Title: CEO

Signature: _____

Date: _____

For Good Samaritan Hospitals:

Name: _____

Title: _____

Signature: _____

Date: _____

EXHIBIT A: FEE STRUCTURE

Master Services Agreement FEE STRUCTURE between BH NEXUS, LLC and Good Samaritan Hospitals

BH NEXUS, LLC shall provide strategic Owner's Advisory services to Good Samaritan Hospitals and their leadership teams, including but not limited to: strategic business planning, grant applications, networking, advocating, negotiating, coordinating team integration, real estate development best practices, compliance with DHCS/AHP requirements, weekly and daily meetings, and real estate development strategic oversight from pre-development through construction best practices. All services to be performed over the initial thirty six (36) month period (July 1, 2025 – July 1, 2028) with optional extensions through 2031 by mutual agreement.

FEE STRUCTURE & PAYMENT TERMS

A. Base Fee and Tiered Monthly Fees (Base Fee billed in advance):

- Tier 1: BASE FEE: \$6,500/month for up to 12 hours/month (minimum)
- Tier 2: \$7,500/month for up to 15 hours/month (standard use)
- Tier 3: \$8,500/month for up to 20 hours/month (maximum without written consent)

B. Overage Hourly Rate, Above Tier 3 Maximum 20 hours/month: - \$250/hour, not to exceed 10 hours/month, with written consent

C. Travel and Expenses: Client agrees to reimburse Consultant for approved travel expenses including: - Per diem: \$500/day max - Lodging: up to \$250/night - Transportation and airfare as required

D. Invoicing & Late Fees:

- Please mail checks to 302 Washington Street, Suite #211, San Diego, CA 92103
- Invoices may be issued by BH NEXUS monthly in advance, for Tier 1 Base Fee, due within 15 days.
- Additional hours beyond Tier 1 Base Fee will be documented and invoiced in arrears, included within subsequent monthly invoices for services rendered, payable within 15 days.
- 1.5% monthly late fee applied after 60 days

EXHIBIT B: BHCIP Round 2 GRANT APPLICATIONS

To the Master Services Agreement between BH NEXUS, LLC and Good Samaritan Hospitals

-
- **Consultant:** BH NEXUS, LLC, a California limited liability company
 - **Client:** Good Samaritan Hospitals, a California nonprofit hospital entity

I. Advisory Services: BHCIP Bond Round 2 Applications

Given our technical expertise in the California behavioral health landscape and the Behavioral Health Continuum Infrastructure Program (BHCIP), we will enhance the Client's application by ensuring it meets and exceeds BHCIP program requirements and maximizes scoring potential for BHCIP Round 2: Launch Ready.

For each BHCIP Round 2 application, BH NEXUS will provide detailed consulting & best practices:

1. Eligibility and Minimum Threshold Requirements: BH NEXUS will provide subject matter expert (SME) support to ensure that all application materials meet and exceed the minimum eligibility requirements as outlined in the BHCIP guidelines. This includes reviewing critical documents such as site control (e.g., title report, purchase and sale agreements, lease agreements), the preliminary title report, the 5-year pro forma business plan, and letters of support from stakeholders like county behavioral health agencies. Our SME review will ensure that all required materials are complete and compliant, positioning the project to progress to Phase 2 of the review process.

2. Comprehensive Application Review for Maximum Scoring Potential: BH NEXUS will conduct a thorough SME review and analysis of the entire application, including all forms, documents, data points, and narratives, to ensure alignment with BHCIP priorities. Our SME advisory role includes reviewing, commenting on, and editing the application narrative to ensure it effectively addresses key technical elements such as behavioral health care gaps, community integration, health equity, costs, due diligence, and the project's impact on vulnerable populations. The Client is responsible for filling out the application to the best of their knowledge, relying on SME consultation for additional information, best practices, industry knowledge, review, edits, and confirmation of final application excellence. By carefully reviewing all sections of the application, we will help ensure that the project is positioned as a strong candidate for funding, achieving the highest possible score.

3. Narrative Writing for Key Sections: BH NEXUS will consult, edit, and review comprehensive content created by the Client. This includes explaining how the project enhances the community's behavioral health continuum of care, addresses critical gaps in services, and meets local and state needs.

4. Reviewing Drawings, Architectural, and Programming Submissions: BH NEXUS will review architectural and schematic design drawings, as well as programming documents, to ensure they adhere to behavioral health planning and evidence-based design standards. This includes reviewing drawings to ensure they meet regulatory requirements and reflect best practices for creating therapeutic environments.

5. Financial Review and Budget Analysis: BH NEXUS will review the financial submissions and provide advisory input and specific SME direction on the application budget (Form 2) to ensure it adheres to BHCIP guidelines. Our SME advisory services will focus on reviewing cost estimates for planning, permitting, and construction, ensuring compliance with prevailing wage laws, and verifying match sources. By providing insights into the financial structure, we will help ensure the project is financially viable and competitive.

6. Deliverable final approval of Client-created highly competitive BHCIP Bond Round 2 application(s).

7. Post-Award Services (May 1, 2026 – through Construction) Upon securing the a new BHCIP Round 2 grant award, BH NEXUS will provide comprehensive post-award support to the Client and Client stakeholders/subcontractors as "Owner's Representative" in the subject matter expertise (SME) areas of (a) behavioral health real estate development and design consulting, (b) BHCIP program compliance, and (c) strategic consulting on best practices of advancement across each project phase. The Company will also provide expert oversight and strategic compliance guidance at all phases of the project (SD to Construction). Throughout the planning phase, we will support the PFA (Program Funding Agreement) compliance with initial fund draws and strategic project planning. In preconstruction and permitting, our role continues with compliance oversight and guidance, ensuring regulatory adherence for smooth funding access. During construction, we will oversee compliance and provide strategic direction to meet all PFA

funding requirements and BHCIP expectations. Through this structured approach, we will help create a sustainable, therapeutic environment aligned with behavioral health standards and project goals. Upon the award announcement, this approach shall be fine-tuned contractually to address evolving project needs.

II. Performance Fee: 90 basis points (0.009) of BHCIP award amount is the agreed to performance fee payable to BH NEXUS, LLC, upon each successful grant award notification as listed in Exhibit B ADDENDUM (Project List), per each BHCIP BOND Round 2 awarded grant application. Payment due within 90 days of BHCIP Bond Round 2 funding draw submittal availability notice date; estimated funding availability (to be released) date November 1st, 2026. Payment due within 90 days after funds become available to be drawn upon.

III. Post-Award Support: (a) Owner's Advisor for behavioral health development pre-construction planning and strategic consulting (b) Owner's Advisor for BHCIP Compliance Consulting on managing dependencies, schedule, budget and risks. Post-Award Support (a) & (b) together carry a total fee of 0.90% (90 basis points) of the total awarded grant budget, based on the BHCIP Application award, for each successful grant listed in Exhibit A (Project List).

Incorporation by Reference:

All terms and conditions set forth in the **Master Services Agreement** dated [Insert MSA Date] are incorporated herein by reference and shall govern this Addendum unless expressly modified herein.

Authorized Signatures:

For BH NEXUS, LLC

Name: Brian Jones

Title: CEO

Signature: _____

Date: _____

For Good Samaritan Hospitals

Name: _____

Title: _____

Signature: _____

Date: _____

{PROJECT #2; ADDENDUM #2 on NEXT PAGE}

ADDENDUM #2

Weedpatch Project 1

To the Master Services Agreement between BH NEXUS, LLC and Good Samaritan Hospitals

This **Project Addendum** ("Addendum") is entered into pursuant to the Master Services Agreement ("MSA") by and between:

- **Consultant:** BH NEXUS, LLC, a California limited liability company
- **Client:** Good Samaritan Hospitals, a California nonprofit hospital entity

This Addendum becomes effective upon mutual execution and governs the Consultant's services for the following project:

Project Title:

Weedpatch Project 1

Grant Award Amount:

\$3,000,000

Consulting Fee:

\$75,000 per year, for each 12 month term

Term of Engagement:

Twelve (12) months from the Effective Date of this Addendum, unless otherwise extended by written agreement.

Monthly Consulting Fee:

\$6,250 per month, billed in advance on the 1st calendar day of each month.

Estimated Hours:

- **13 hours per month**
 - **~4 hours per week**
-

Milestone-Based Payment Provision:

Upon issuance of a **building permit** for the Weedpatch Project 1, Client agrees to pay Consultant a **lump sum equal to 80% of the following year's total annual fee (\$60,000)**. This milestone payment shall be due within **thirty (30) calendar days** of invoice.

Additional Hourly Charges:

Any **hours beyond the 13-hour monthly cap** must be **approved by Client** and will be billed at **\$500/hour**, invoiced at the end of the following month. Any changes to workload or fee must be **mutually agreed upon in writing**.

Scope of BHCIP Advisory Services (Project-Specific):

Consultant shall provide the following services in accordance with the Master Services Agreement:

- Strategic oversight and subject matter expertise for **DHCS BHCIP performance and compliance**
- **BHCIP-centric coordination and review** of planning, permitting, funding milestones, and compliance documents
- Post-award guidance for **BHCIP & DHCS documentation**, and **PFA milestone reporting**
- Advisory support in **schedule development, funding alignment, and risk mitigation**
- **Attendance in key stakeholder meetings**, as needed and mutually agreed

Note: Consultant's role is limited to strategic Owner's Advisory services and does **not** include construction management, on-site inspections, or contractor supervision.

Incorporation by Reference:

All terms and conditions set forth in the **Master Services Agreement dated [Insert MSA Date]** are incorporated herein by reference and shall govern this Addendum unless expressly modified herein.

Authorized Signatures:

For BH NEXUS, LLC

Name: Brian Jones

Title: CEO

Signature: _____

Date: _____

For Good Samaritan Hospitals

Name: _____

Title: _____

Signature: _____

Date: _____

ADDENDUM #3

Weedpatch Project 2

To the Master Services Agreement between BH NEXUS, LLC and Good Samaritan Hospitals

This **Project Addendum** ("Addendum") is entered into pursuant to the Master Services Agreement ("MSA") by and between:

- **Consultant:** BH NEXUS, LLC, a California limited liability company
- **Client:** Good Samaritan Hospitals, a California nonprofit hospital entity

This Addendum becomes effective upon mutual execution and governs the Consultant's services for the following project:

Project Title:

Weedpatch Project 2**Grant Award Amount:****\$2,000,000****Consulting Fee:****\$70,000 per year, for each 12 month term.****Term of Engagement:****Twelve (12) months** from the Effective Date of this Addendum, unless otherwise extended by written agreement.**Monthly Consulting Fee:****\$5,833 per month**, billed in advance on the 1st calendar day of each month.**Estimated Hours:**

- **12 hours per month**
- **~4 hours per week**

Milestone-Based Payment Provision:

Upon issuance of a **building permit** for the Weedpatch Project 2, Client agrees to pay Consultant a **lump sum equal to 80% of the following year's total annual fee (\$56,000)**. This milestone payment shall be due within **thirty (30) calendar days** of invoice.

Additional Hourly Charges:

Any **hours beyond the 12-hour monthly cap** must be **approved by Client** and will be billed at **\$500/hour**, invoiced at the end of the following month. Any changes to workload or fee must be **mutually agreed upon in writing**.

Scope of BHCIP Advisory Services (Project-Specific):

Consultant shall provide the following services in accordance with the Master Services Agreement:

- Strategic oversight and subject matter expertise for **DHCS BHCIP performance and compliance**
- **BHCIP-centric coordination and review** of planning, permitting, funding milestones, and compliance documents
- Post-award guidance for **BHCIP & DHCS documentation**, and **PFA milestone reporting**
- Advisory support in **schedule development, funding alignment, and risk mitigation**
- **Attendance in key stakeholder meetings**, as needed and mutually agreed

Note: Consultant's role is limited to strategic Owner's Advisory services and does **not** include construction management, on-site inspections, or contractor supervision.

Incorporation by Reference:

All terms and conditions set forth in the **Master Services Agreement dated [Insert MSA Date]** are incorporated herein by reference and shall govern this Addendum unless expressly modified herein.

Authorized Signatures:**For BH NEXUS, LLC**

Name: Brian Jones

Title: CEO

Signature: _____

Date: _____

For Good Samaritan Hospitals

Name: _____

Title: _____

Signature: _____

Date: _____

ADDENDUM #4

McFarland

To the Master Services Agreement between BH NEXUS, LLC and Good Samaritan Hospitals

This **Project Addendum** ("Addendum") is entered into pursuant to the Master Services Agreement ("MSA") by and between:

- **Consultant:** BH NEXUS, LLC, a California limited liability company
- **Client:** Good Samaritan Hospitals, a California nonprofit hospital entity

This Addendum becomes effective upon mutual execution and governs the Consultant's services for the following project:

Project Title:

Project 4

Grant Award Amount:

\$11,000,000

Consulting Fee:

\$71,500 total per year, for each 12 month term.

(equivalent to **65 basis points**, or **0.0065** of the total grant amount)

Term of Engagement:

Twelve (12) months from the Effective Date of this Addendum, unless otherwise extended by written agreement.

Monthly Consulting Fee:

\$5,958 per month, billed in advance on the 1st calendar day of each month.

Estimated Hours:

- **12 hours per month**
 - **~4 hours per week**
-

Milestone-Based Payment Provision:

Upon issuance of a **building permit** for Project 4, Client agrees to pay Consultant a **lump sum equal to 80% of the following year's total annual fee (\$57,200)**. This milestone payment shall be due within **thirty (30) calendar days** of invoice.

Additional Hourly Charges:

Any **hours beyond the 12-hour monthly cap** must be **pre-approved by Client** and will be billed at **\$500/hour**, invoiced at the end of the following month. Any changes to workload or fee must be **mutually agreed upon in writing**.

Scope of BHCIP Advisory Services (Project-Specific):

Consultant shall provide the following services in accordance with the Master Services Agreement:

- Strategic oversight and subject matter expertise for **DHCS BHCIP performance and compliance**
- **BHCIP-centric coordination and review** of planning, permitting, funding milestones, and compliance documents
- Post-award guidance for **BHCIP & DHCS documentation**, and **PFA milestone reporting**
- Advisory support in **schedule development, funding alignment, and risk mitigation**
- **Attendance in key stakeholder meetings**, as needed and mutually agreed

Note: Consultant's role is limited to strategic Owner's Advisory services and does **not** include construction management, on-site inspections, or contractor supervision.

Incorporation by Reference:

All terms and conditions set forth in the **Master Services Agreement dated [Insert MSA Date]** are incorporated herein by reference and shall govern this Addendum unless expressly modified herein.

Authorized Signatures:**For BH NEXUS, LLC**

Name: Brian Jones

Title: CEO

Signature: _____

Date: _____

For Good Samaritan Hospitals

Name: _____

Title: _____

Signature: _____

Date: _____

ADDENDUM #5**Round 2 BHCIP Application Support**

To the Master Services Agreement between BH NEXUS, LLC and Good Samaritan Hospitals

ADDENDUM #5**Round 2 BHCIP Application Support**

To the Master Services Agreement between BH NEXUS, LLC and Good Samaritan Hospitals

This Addendum #5 ("Addendum") is entered into pursuant to the Master Services Agreement ("MSA") dated [Insert MSA Date], by and between:

- Consultant: BH NEXUS, LLC, a California limited liability company
- Client: Good Samaritan Hospitals, a California nonprofit hospital entity

This Addendum governs the Consultant's services related to the preparation, submission, and post-award strategic guidance for BHCIP Round 2: Launch Ready applications due October 28, 2025.

1. Purpose of Engagement

This Addendum establishes a clear framework for a mutual agreement under which BH NEXUS, LLC ("Company") will be engaged and compensated by Good Samaritan Hospitals ("Client") for the BHCIP application submittal and post-award services as related to the specific projects herein defined in Exhibit A (Project List).

2. Definitions

- "Company" refers to BH NEXUS, LLC.
 - "Client" refers to Good Samaritan Hospitals.
 - "Parties" means the Company and the Client.
 - "Services" includes consulting, narrative development, compliance, and post-award support.
 - "Exhibit A" lists Specific Projects and BHCIP Applications under this agreement.
-

3. Scope of Services

a. Application Phase (July–October 2025):

1. SME support for eligibility criteria, threshold documents, and stakeholder letters.
2. Comprehensive application review and scoring optimization.
3. Guidance on technical narrative responses and strategic edits.
4. Review of design and programming documentation.
5. Financial and budgetary review to ensure guideline compliance.
6. Final SME review and confirmation of submission readiness.

b. Post-Award Phase (Upon Award through Planning and Pre-Construction):

1. SME consultation (10 hrs/month max) from Feb 1, 2026–Jan 31, 2027.
2. Advisory support for behavioral health facility planning, design compliance, and PFA oversight.
3. Strategic consulting on milestone delivery, reporting, and risk mitigation.
4. Post-award compliance and Owner's Representative services through 2031.

4. Term of Engagement

- Effective Date: Upon mutual execution of this Addendum.
- Application Phase: Ends October 28, 2025.
- Post-Award Phase: Upon award through up to December 31, 2031 (project dependent).

5. Fee Structure

1. Retainer:
 - None.
2. Per Application Fee:
 - \$7,500 per submitted grant application, payable by October 15, 2025.
3. Application Consulting Fees:
 - July, August & September 2025: \$3,000/month for up to 10 hours/month.
 - October 2025: \$5,000/month for up to 15 hours/month.
 - Additional hours billed at \$500/hour, invoiced monthly.
4. Performance Fee:
 - 150 Basis Points (1.5%) of awarded grant amounts per project in Exhibit A.
 - Payable within 360 days post-award via project funding draws (2026–2028).
5. Post-Award Support:
 - Remote strategic support for up to 10 hrs/month, for 360 days post award notice.
 - Includes BHCIP Owner's Rep services: PFA compliance, development review, and milestone consulting.
 - BH NEXUS Fee is 1.5% of the grant amount; payable through first 8 draw requests.

6. Conditions of Engagement

1. Liability Disclaimer: Company offers no guarantee of award; Client retains submission responsibility.
2. Confidentiality: All shared materials are strictly confidential. NDA required.
3. Termination: Either party may terminate with 14 days' notice. Fees to date plus post-award fees for awarded projects remain payable.
4. Client Obligations: Payment due within 30 days of invoice. Late fees apply at 1.5%/month.

7. Insurance and Indemnification

- Mutual indemnification applies.
- Both Parties must maintain General Liability and E&O insurance (\$1M/\$2M coverage).

8. Dispute Resolution

- Governed by California law.
- Disputes resolved by binding arbitration per AAA rules.

9. Signatures

IN WITNESS WHEREOF, the parties hereto have executed this Addendum as of the dates below:

For BH NEXUS, LLC

Name: Brian B. Jones

Title: CEO

Signature: _____

Date: _____

For Good Samaritan Hospitals

Name: _____

Title: _____

Signature: _____

Date: _____

Exhibit A: Project List for Round 2 BHCIP Applications

PROJECT #1

1. Project Name:
2. Project Address:
3. Estimated Grant Request Amount:
4. Estimated Construction Budget:
5. Estimated Construction Start Date:
- 6.

PROJECT #2

1. Project Name:
2. Project Address:
3. Estimated Grant Request Amount:
4. Estimated Construction Budget:
5. Estimated Construction Start Date:

PROJECT #3

- (1) Project Name:
- (2) Project Address:
- (3) Estimated Grant Request Amount:
- (4) Estimated Construction Budget:
- (5) Estimated Construction Start Date:

[Additional projects may be appended by mutual agreement.]

END OF ADDENDUM #5

[Additional projects may be appended as mutually agreed.]